

ICMAI
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COST ACCOUNTANTS OF INDIA
भारतीय लागत लेखाकार संस्थान
Statutory Body under an Act of Parliament
(Under the jurisdiction of Ministry of Corporate Affairs)

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CHAPTER XV UNDER THE INCOME TAX ACT 2025

Section 262 Application and Allotment of PAN



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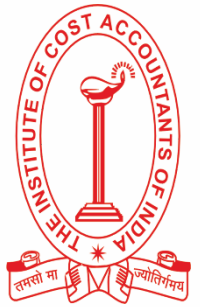
Chapter XV- Return of Income

A. Allotment of Permanent Account Number

Permanent Account Number

262. (1) Every person who has not been allotted a Permanent Account Number shall, within such time as may be prescribed, apply to the Assessing Officer for its allotment if he fulfils any of the following conditions:-

- (a) his total income or the total income of any other person for which he is assessable under this Act during any tax year exceeded the maximum amount not chargeable to income-tax; or
- (b) he is carrying on any business or profession whose total sales, turnover or gross receipts are or is likely to exceed ₹ 500000 in any tax year, or
- (c) he is required to furnish a return of income under section 263 for any tax year,
- (d) he is a resident, other than an individual, which enters into a financial transaction aggregating to Rs.2,50,000/- or more in a tax year, or



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A. Allotment of Permanent Account Number

(e) he is the managing director, director, partner, trustee, author, founder, karta, chief executive officer, principal officer or office bearer of the person referred to in clause (d) or any person competent to act on behalf of the person referred to in clause (d); or

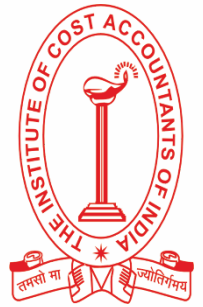
(f) he intends to enter into such transaction as may be prescribed by the Board in the interest of revenue.

(2) Any person, not covered under sub-section (1) may apply to the Assessing Officer for the allotment of a Permanent Account Number after which the Assessing Officer shall allot a Permanent Account Number to such person.

(3) Every person shall quote Permanent Account Number in all his returns to, or correspondence with, any income-tax authority and in all challans for the payment of any sum due under this Act.

(4) Every person shall intimate the Assessing Officer of any change in his address or in the name and nature of his business on the basis of which the Permanent Account Number was allotted to him.

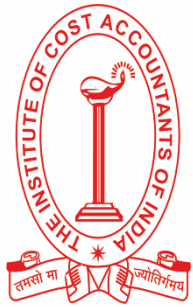
(5) Every person who is eligible to obtain Aadhaar number shall quote such number in the application form for allotment of Permanent Account Number and in the return of income.



Chapter XV- Return of Income

A. Allotment of Permanent Account Number

- (6)(a) For the cases other than sub-section (5), every person who has been allotted Permanent Account Number and who is eligible to obtain Aadhaar number, shall intimate his Aadhaar number to the prescribed income-tax authority in such form and manner, as may be prescribed;
- (b) if a person fails to intimate his Aadhaar number as per clause (a), the Permanent Account Number allotted to that person shall be made inoperative in such manner as may be prescribed.
- (7) Every person who is required to furnish or intimate or quote his Permanent Account Number under this Act, and who-
- (a) has not been allotted a Permanent Account Number but possesses the Aadhaar number, may furnish or intimate or quote his Aadhaar number in lieu of the Permanent Account Number, and such person shall be allotted a Permanent Account Number in the manner, as may be prescribed;
- (b) has been allotted a Permanent Account Number, and who has intimated his Aadhaar number as per sub-section (6) may furnish or intimate or quote his Aadhaar number in lieu of the Permanent Account Number.
- (8) A person who has already been allotted a Permanent Account Number cannot apply, obtain or possess another Permanent Account Number.



Chapter XV- Return of Income

A. Allotment of Permanent Account Number

(9)(a) Every person entering into such transaction, as may be prescribed, shall quote his Permanent Account Number or Aadhaar number, in the documents pertaining to such transactions and also authenticate such Permanent Account Number or Aadhaar number, in the manner, as may be prescribed;

(b) every person receiving any document relating to the transactions referred to in clause (a), shall ensure that Permanent Account Number or Aadhaar number, has been duly quoted in such document and that such Permanent Account Number or Aadhaar number is authenticated as may be prescribed.

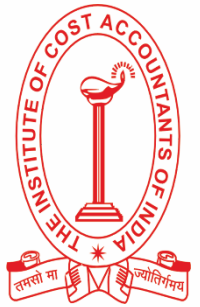
(10) The Board may make rules providing for-

(a) the form, manner and time in which an application may be made for the allotment of Permanent Account Number and the particulars which such application shall contain;

(b) class or classes of persons who shall be required to apply for allotment of Permanent Account Number;

(c) categories of documents pertaining to business or profession in which Permanent Account Number shall be quoted by every person:

(d) the form and manner in which the person who has not been allotted a Permanent Account Number shall make his declaration;



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A. Allotment of Permanent Account Number

(e) manner of authentication of Permanent Account Number or Aadhaar number;

(f) class or classes of persons to whom the provisions of this section shall not apply having regard to the transactions or the circumstances.

(11)(a) The Central Government may, by notification, specify any class or classes of persons who shall apply to the Assessing Officer for the allotment of Permanent Account Number within such time as mentioned in such notification;

(b) the class or classes of persons in clause (a) may include such persons-

(i) by whom tax is payable under this Act; or

(ii) by whom any tax or duty is payable under any other law in force, or

(iii) being importers and exporters, even when no tax is payable by them.

(12) The provisions of sub-sections (5) and (6) shall not apply to such person or class or classes of persons or any State or part of any State, as may be notified by the Central Government.

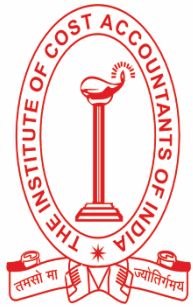


Chapter XV- Return of Income

A. Allotment of Permanent Account Number

(13) For the purposes of this section,-

- (a) "**Aadhaar number**" shall have the same meaning as assigned to it in section 2(a) of the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016 (18 of 2016);
- (b) "Assessing Officer" includes an income-tax authority who is assigned the duty of allotting Permanent Account Number:
- (c) "authentication" means the process by which the Permanent Account Number or Aadhaar number along with demographic information or biometric information of an individual is submitted to the income-tax authority or such other authority or agency as may be prescribed for its verification and such authority or agency verifies the correctness, or the lack thereof, on the basis of information available with it.

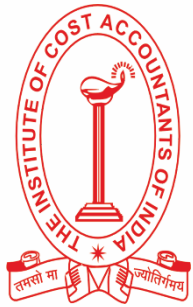


Rules

A. Allotment of Permanent Account Number

Rule 158. Application for allotment of a Permanent Account Number. —

- (1) An application under section 262 for allotment of a Permanent Account Number shall be made in **Form No. 93, Form No. 94, Form No. 95 and Form No. 96**, as the case maybe, in accordance with sub-rule (8).
- (2) An applicant may also apply for allotment of a Permanent Account Number through a common application form as may be, notified by the Central Government.
- (3) Any person, who has not been allotted a Permanent Account Number, but possesses the Aadhaar number may apply for allotment of the Permanent Account Number under section 262(1) or (2) or (11) to the authorities mentioned in sub-rule (4) by intimating his Aadhaar number.
- (4) The Director General of Income-tax (Systems) shall, on receipt of information under sub-rule (3), authenticate the Aadhaar number for that purpose.



Rules

A. Allotment of Permanent Account Number

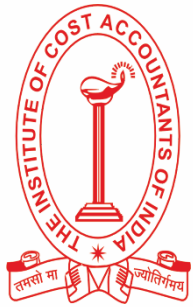
(5) An application referred to in sub-rule (1) shall be made,—

(i) in cases where the function of allotment of Permanent Account Number under section 262 has been assigned by the Chief Commissioner or Commissioner to any particular Assessing Officer, to that Assessing Officer; and

(ii) in any other case, to the Assessing Officer having jurisdiction to assess the applicant.

(6) For the purposes of sub-rule(5), the Assessing officer shall include an income tax authority who is assigned the duty of allotting Permanent Account Number by the Director General of Income-tax (Systems).

(7) The application referred to in sub-rule (1) shall be made by the person specified in Column B of the following Table within the time specified in column C thereof:





Rules regarding Time Limit - PAN

Sl No	Person	Time within which application for allotment of Permanent Account Number is to be made
1	Where the total income of the person or the total income of any other person in respect of which he is assessable under the Act during any tax year exceeds the maximum amount which is not chargeable to income-tax and he has not been allotted any Permanent Account Number.	On or before the 31st May of the tax year immediately succeeding the tax year, for which such income is assessable.
2	A person not falling under Sl. No. 1, but carrying on any business or profession, the total sales, turnover or gross receipts of which are or is likely to exceed Rs. 5,00,000 in any tax year and who has not been allotted any Permanent Account Number.	Before the end of that tax year
3	A person who is required to furnish a return of income under section 349 and who has not been allotted any Permanent Account Number.	Before the end of that tax year
4	A person who is entitled to receive any sum or income or amount, on which tax is deductible or collectible under Chapter XIX-B in any tax year.	Before the end of that tax year

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Rules regarding Time Limit - PAN

Sl No	Person	Time within which application for allotment of Permanent Account Number is to be made
5	A person, being a resident, other than an individual, which enters into a tax transaction of an amount aggregating to Rs 2,50,000 or more in a tax and which has not been allotted any Permanent Account Number	On or before the 31st May, immediately following such tax year
6	A person, who is the managing director, director, partner, trustee, author, founder, karta, chief executive officer, principal officer or office bearer of the person referred to in Sl. No. 5 or any person competent to act on behalf of the person referred to in the said serial number and who has not been allotted any Permanent Account Number.	On or before the 31st May, immediately following the tax year in which the person referred to in Sl. No. 5 enters into financial transaction specified therein
7	A person who intends to enter into the transaction prescribed under section 262(1)(f) and section 262(9)(a).	At least seven days before the date on which he intends to enter into the said transaction



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Rules regarding Proof of Identity, Address and Date of birth (copy of the following)

- (8)(a) The application referred to in sub-rules (1) and (3), in respect of an individual who is a citizen of India, shall be
- filled in the Form 93, and shall be accompanied by the documents mentioned in the following Table for proof of
- identity, address and date of birth:



Proof of Identity, Address and Date of birth (copy of the following)

Sl No	Name of the Document	ID	ADD	DoB
1	Aadhar Card	Yes	Yes	No
2	Indian Passport	Yes	Yes	Yes
3	Driving License	Yes	Yes	Yes
4	Elector's Photo Identity Card issued by Election Commission of India	Yes	Yes	Yes
5	Ration Card having photograph of the applicant	Yes	No	No
6	Transgender Identity Card or Certificate issued under Transgender Persons (Protection of Rights) Act, 2019 having photograph of the applicant	Yes	Yes	Yes
7	Photo Identity Card issued by the Central Government or a State Government or a Public Sector undertaking	Yes	No	Yes
8	Pensioner Card issued by Government, having photograph of the applicant	Yes	No	No
9	Central Government Health Scheme Card or Ex-servicemen contributory Health Scheme Photo Card	Yes	No	Yes
10	Indian Passport of Spouse bearing name of the person	No	Yes	No

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Proof of Identity, Address and Date of birth (copy of the following)

Sl No	Name of the Document	ID	ADD	DoB
11	Post office passbook having address of the applicant	No	Yes	No
12	Domicile Certificate issued by the Government	No	Yes	Yes
13	Allotment Letter of accommodation issued by the Central Government or a State Government of not more than 3 years old	No	Yes	No
14	Property Registration Document	No	Yes	No
15	Latest Property Tax assessment order	No	Yes	No
16	Electricity Bill (not more than 3 months old)	No	Yes	No
17	Landline Telephone or Broadband connection Bill (not more than 3 months old)	No	Yes	No
18	Water Bill (not more than 3 months old)	No	Yes	No
19	Consumer Gas Connection Card or book or piped gas bill (not more than 3 months old)	No	Yes	No
20	Bank Account Statement (not more than 3 months old) * In case of an Indian citizen residing outside India, copy of bank account statement in country of residence or copy of non-resident external bank account statements shall be the proof of address.	No	Yes	No

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Proof of Identity, Address and Date of birth (copy of the following)

SI No	Name of the Document	ID	ADD	DoB
21	Depository account statement (not more than 3 months old)	No	Yes	No
22	Credit Card Statement (not more than 3 months old)	No	Yes	No
23	For individuals born on or after 1 st October, 2023 Birth Certificate issued by the Municipal Authority or any office authorized to issue birth and death certificate by the Registrar Birth and Deaths or the Indian Consulate as defined in Section 2(1)(d) of the Citizenship Act, 1955 (57 of 1955)	No	No	Yes
24	Birth Certificate issued by the municipal authority or any office authorized to issue birth and death certificate by the Registrar Birth and Deaths or the Indian Consulate as defined in Section 2(1)(d) of the Citizenship Act, 1955 (57 of 1955)	No	No	Yes
25	Pension Payment Order	No	No	Yes
26	Marriage Certificate issued by registrar of Marriages	No	No	Yes
27	Matriculation Certificate or Mark-sheet of Recognized Board	No	No	Yes



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Proof of Identity, Address and Date of birth (Original of the following)

Sl No	Name of the Document	ID	ADD	DoB
1	Certificate of Identity signed by a Member of Parliament or Member of Legislative Assembly or Municipal Councilor or a Gazette Officer, as the case may be	Yes	No	No
2	Bank Certificate, on the Letter Head from the branch (along with the name, stamp and copy of the Employee Id of the issuing officer) containing duly attested photograph and bank account number of the applicant	Yes	No	No
3	Certificate of address signed by a Member of Parliament or Member of Legislative Assembly or Municipal Councilor or a Gazette Officer, as the case may be	No	Yes	No
4	Employer Certificate	No	Yes	No
5	Affidavit sworn before a Magistrate stating the Date of birth	No	No	Yes



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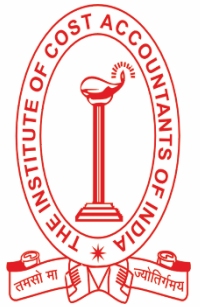
Proof of Identity, Address and Date of birth (Original of the following)

- In case of a **person being a minor**,
- in addition to Aadhaar of the minor, any of the above listed documents of any of the parents or guardian of such minor shall be deemed to be the proof of identity
- In case of an Indian citizen residing outside India, copy of bank account statement in country of residence or copy of non-resident external bank account statements shall be the proof of address.
- (b) The application referred to in sub-rules (1) and (3), in respect of an applicant mentioned in column B of the following Table, shall be filled in the Form mentioned in column C of the said table, and shall be accompanied by the documents mentioned in column D thereof, as proof of identity, address and date of birth or date of incorporation of such applicant:

Proof of Identity, Address and Date of birth (For different Class of Applicants)

Class of Applicant	Documents as proof of identity, address and date of birth or date of incorporation
Hindu undivided family Form no: 94	• Original affidavit by the karta of the Hindu Undivided Family duly authenticated by a Notary Public or Oath Commissioner or Judicial Magistrate stating the name, father's name, Aadhaar number or Permanent Account Number and address of all the coparceners on the date of application; and • a copy of any document applicable in the case of an individual specified in serial number 1, in respect of karta of the Hindu undivided family, as proof of identity, address and date of birth.
Trusts formed or registered in India Form no: 94	• Copy of trust deed; or • Copy of Certificate of Registration Number issued by Charity Commissioner.



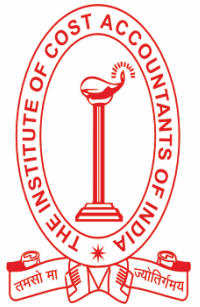


Proof of Identity, Address and Date of birth (For different Class of Applicants)

Class of Applicant	Documents as proof of identity, address and date of birth or date of incorporation
Company registered in India Form no: 94	• Copy of Certificate of Registration issued in India by the Registrar of Companies; or • corporate identity number allotted by the Registrar under section 7 of the Companies Act, 2013 (18 of 2013).
Limited Liability Partnership formed or registered in India Form no: 94	• Copy of Certificate of Registration issued in India by the Registrar of Limited Liability Partnerships; or • LLP identification number allotted in India by the Registrar under the Limited Liability Partnership Act, 2008(6 of 2009).
Firm (other than Limited Liability Partnership) formed or registered in India Form no: 94	• Copy of Certificate of Registration issued in India by the Registrar of Firm; or • copy of partnership deed.

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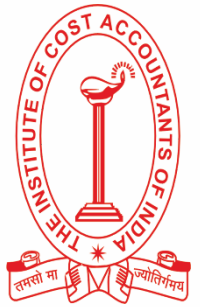


Proof of Identity, Address and Date of birth (For different Class of Applicants)

Class of Applicant	Documents as proof of identity, address and date of birth or date of incorporation
Association of persons (other than trusts) or body of individuals formed or registered in India Form no: 94	• Copy of agreement; or • Copy of Certificate of Registration Number issued by Charity Commissioner or Registrar of Co-operative Society or any other competent authority; or • any document originating from any Central Government or State Government Department, establishing identity and address of such person
Local authority or artificial juridical person formed or registered in India Form no: 94	• Any document originating from any Central Government or State Government Department establishing identity and address of such person

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Proof of Identity, Address and Date of birth (For different Class of Applicants)

Class of Applicant	Documents as proof of identity, address and date of birth or date of incorporation
Any person on behalf of the Central Government or State Government or Union Territory Administration Form no: 94	• Certificate in original from the Head of the Department or Pay and Accounts Officer or Zonal Accounts Officer or District Treasury Officer or Cheque Drawing and Disbursing Officer

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Proof of Identity, Address and Date of birth (For different Class of Applicants)

Class of Applicant	Documents as proof of identity, address and date of birth or date of incorporation
Individuals not being a citizen of India Form no: 95	• Proof of identity : ☐ Copy of passport; or ☐ copy of person of Indian Origin card issued by the Government of India; or ☐ copy of Overseas Citizenship of India Card issued by Government of India; or ☐ copy of other national or citizenship Identification Number or Taxpayer Identification Number duly attested by "Apostille" (in respect of countries which are signatories to the Hague Apostille Convention of 1961) or by Indian embassy or High Commission or Consulate in the country where the applicant is located or authorised officials of overseas branches of Scheduled Banks registered in India.



Proof of Identity, Address and Date of birth (For different Class of Applicants)

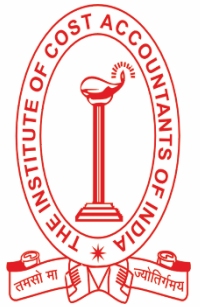
Class of Applicant	Documents as proof of identity, address and date of birth or date of incorporation
Individuals not being a citizen of India Form no: 95	• Proof of date of birth: ☐ Copy of passport; or ☐ copy of person of Indian Origin card issued by the Government of India; or ☐ copy of Overseas Citizenship of India Card issued by Government of India; or ☐ copy of other national or citizenship Identification Number or Taxpayer Identification Number containing date, month and year of birth duly attested by "Apostille" (in respect of countries which are signatories to the Hague Apostille Convention of 1961) or by Indian embassy or High Commission or Consulate in the country where the applicant is located or authorised officials of overseas branches of Scheduled Banks registered in India; or



Proof of Identity, Address and Date of birth (For different Class of Applicants)

Class of Applicant	Documents as proof of identity, address and date of birth or date of incorporation
Individuals not being a citizen of India Form no: 95	• Proof of date of birth: ☐ birth certificate issued by the municipal authority or any office authorised to issue birth and death certificate by the Registrar of Birth and Deaths or the Indian Consulate as defined in clause (d) of sub-section (1) of section 2 of the Citizenship Act, 1955 (57 of 1955); or ☐ copy of birth certificate containing date, month and year of birth issued by any foreign authority and duly attested by "Apostille" (in respect of countries which are signatories to the Hague Apostille Convention of 1961) or by Indian embassy or High Commission or Consulate in the country where the applicant is located or authorised officials of overseas branches of Scheduled Banks registered in India.





Proof of Identity, Address and Date of birth (For different Class of Applicants)

Class of Applicant	Documents as proof of identity, address and date of birth or date of incorporation
Individuals not being a citizen of India Form no: 95	• Proof of address: ☐ copy of passport; or ☐ copy of person of Indian Origin card issued by the Government of India; or ☐ copy of Overseas Citizenship of India Card issued by Government of India; or ☐ copy of other national or citizenship Identification Number or Taxpayer ☐ Identification Number duly attested by "Apostille" (in respect of countries which are signatories to the Hague Apostille Convention of 1961), or by Indian embassy or High Commission or Consulate in the country where the applicant is located or authorised officials of overseas branches of Scheduled Banks registered in India; or

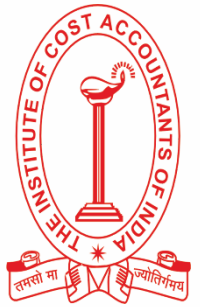
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Proof of Identity, Address and Date of birth (For different Class of Applicants)

Class of Applicant	Documents as proof of identity, address and date of birth or date of incorporation
Individuals not being a citizen of India Form no: 95	• Proof of address: ☐ copy of bank account statement in the country of residence; or ☐ copy of Non-resident External bank account statement in India; or ☐ copy of certificate of residence in India or Residential permit issued by the State Police Authority; or ☐ copy of the registration certificate issued by the Foreigner's Registration Office showing Indian address; or ☐ copy of visa granted and copy of appointment letter or contract from Indian Company and Certificate (in original) of Indian Address issued by the employer.



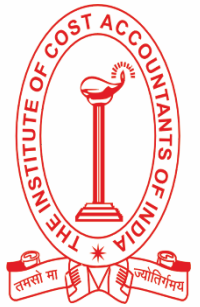


Proof of Identity, Address and Date of birth (For different Class of Applicants)

Class of Applicant	Documents as proof of identity, address and date of birth or date of incorporation
Limited Liability Partnership registered outside India Form no: 96	• Copy of Certificate of Registration issued in the country where the applicant is located, duly attested by "Apostille" (in respect of countries which are signatories to the Hague Apostille Convention of 1961), or by Indian embassy or High Commission or consulate in the country where the applicant is located, or authorised officials of overseas branches of Scheduled Banks registered in India; or • copy of registration certificate issued in India or of approval granted to set up office in India by Indian Authorities.

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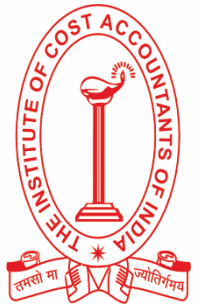


Proof of Identity, Address and Date of birth (For different Class of Applicants)

Class of Applicant	Documents as proof of identity, address and date of birth or date of incorporation
Company registered outside India Form no: 96	• Copy of Certificate of Registration issued in the country where the applicant is located, duly attested by "Apostille" (in respect of countries which are signatories to the Hague Apostille Convention of 1961) or by Indian embassy or High Commission or consulate in the country where the applicant is located, or authorised officials of overseas branches of Scheduled Banks registered in India; or • copy of registration certificate issued in India or of approval granted to set up office in India by Indian Authorities.

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Proof of Identity, Address and Date of birth (For different Class of Applicants)

Class of Applicant	Documents as proof of identity, address and date of birth or date of incorporation
Firm formed or registered outside India Form no: 96	• Copy of Certificate of Registration issued in the country where the applicant is located, duly attested by "Apostille" (in respect of countries which are signatories to the Hague Apostille Convention of 1961), or by Indian embassy or High Commission or Consulate in the country where the applicant is located, or authorised officials of overseas branches of Scheduled Banks registered in India; or • copy of registration certificate issued in India or of approval granted to set up office in India by Indian Authorities.

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Proof of Identity, Address and Date of birth (For different Class of Applicants)

Class of Applicant	Documents as proof of identity, address and date of birth or date of incorporation
Association of persons (Trusts) formed outside India OR Association of persons (other than Trusts) or body of individuals or local authority or person formed or any other entity (by whatever name called) registered outside India Form no: 96	• Copy of Certificate of Registration issued in the country where the applicant is located, duly attested by "Apostille" (in respect of countries which are signatories to the Hague Apostille Convention of 1961), or by Indian embassy or High Commission or Consulate in the country where the applicant is located, or authorised officials of overseas branches of Scheduled Banks registered in India; or • copy of registration certificate issued in India or of approval granted to set up office in India by Indian Authorities.



Special instruction of this table

- The penal provisions still applicable if any person eligible to be allotted for PAN but failed to intimate Aadhaar authentication number before the appropriate authority shall be penalized by Rs.1,000/-

(11) The Director General of Income-tax (Systems) shall specify the classes of persons, forms, guidelines, standards and formats along with procedure for safe and secure transmission of forms and formats under sub-rule (2) in relation to furnishing application for allotment of the Permanent Account Number.

(12) The Director General of Income-tax (Systems) shall specify the forms and formats along with procedure in relation to furnishing correction application under section 262(4).

(13) The Director General of Income-tax (Systems) shall specify the formats, guidelines and standards along with procedure, for the verification of documents filed with the application under sub-rule (8), intimation of Aadhaar number in sub-rule (9) and issue of Permanent Account Number for ensuring secure capture and transmission of data in such format and standards and shall also be responsible for evolving and implementing appropriate security, archival and retrieval policies in relation to furnishing of the application forms for allotment of Permanent Account Number, intimation of Aadhaar number and issue of Permanent Account Number.

(14) The Director General of Income-tax (Systems) shall lay down the formats, guidelines and standards along with procedure for,—

- (a) intimation of Aadhaar number under sub-rule (3); or
- (b) authentication of Aadhaar number under sub-rule (4); or
- (c) obtaining demographic information of an individual from the Unique Identification Authority of India,

for ensuring secure capture and transmission of data and shall also be responsible for evolving and implementing appropriate security, archival and retrieval policies in relation to furnishing or intimation or quoting or authentication of Aadhaar number or obtaining of demographic information of an individual from the Unique Identification Authority of India, for allotment of Permanent Account Number and issue thereof.

Rules

A. Allotment of Permanent Account Number

Rule 157. Persons Exempt from obtaining Permanent Account Number under section 262.— (1)

The provisions of section 262 shall not apply to a non-resident (not being a company or a foreign company) who has, during a tax year, made investment in a specified fund, if the following conditions are met: —

(a) such non-resident does not earn any income in India other than the income from the investment in the specified fund during the tax year;

(b) the income-tax due on such income of non-resident is deducted at source and remitted to the Central Government by the specified fund at the rates specified sections 393(1) [Table: Sl. No. 4(iii)], 393(2) [Table: Sl. No. 8] and 393(4) [Table: Sl. No. 14]; and

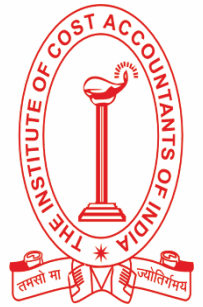


Rules

A. Allotment of Permanent Account Number

(c) the non-resident furnishes the following details and documents to the specified fund: —

- (i) name, email id and contact number;
- (ii) address in the country or specified territory outside India of which he is a resident;
- (iii) a declaration that he is a resident of a country or specified territory outside India; and
- (iv) Tax Identification Number (TIN) in the country or specified territory of his residence, and where no such number is available, then a unique number on the basis of which the non-resident is identified by the government of that country or the specified territory.



Rules

A. Allotment of Permanent Account Number

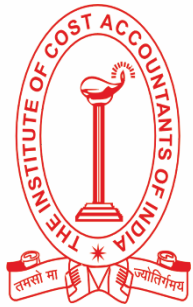
(2) The specified fund shall —

(a) furnish a quarterly statement for the quarter of the financial year, in which the details and documents referred to in sub-rule (1)(c) are received by it, in Form No. 92 electronically to the Director General of Income-tax (Systems) or a person authorised by him; and

(b) upload the declaration of foreign residency as referred to in sub-rule (1)(c)(iii) within fifteen days from the end of the quarter of the financial year to which such statement relates.

(3) The provisions of section 262 shall not apply to a non-resident, being an eligible foreign investor, who has made transaction only in capital assets referred to in section 70(1)(r), which are listed on a recognised stock exchange located in any International Financial Services Centre and the consideration on such transfer of capital asset is paid or payable in foreign currency, if the following conditions are fulfilled: —

(a) the eligible foreign investor does not earn any income in India, other than the income from transfer of a capital asset referred to in section 70(1)(r);



Rules

A. Allotment of Permanent Account Number

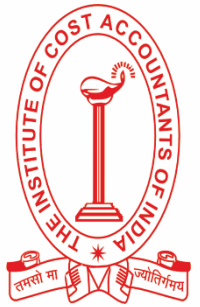
(b) the eligible foreign investor furnishes the following details and documents to the stock broker through which the transaction is made: —

- (i) name, email id, and contact number;
- (ii) address in the country or specified territory outside India of which he is a resident;
- (iii) a declaration that he is a resident of a country or specified territory outside India; and
- (iv) Tax Identification Number (TIN) in the country or specified territory of his residence, and

where no such number is available, then a unique number on the basis of which the non-resident is identified by the Government of that country or the specified territory.

(4) The stock broker shall —

- (a) furnish a quarterly statement for the quarter of the financial year, in which the details and documents referred to in sub-rule (3) are received by it, in Form No. 92 electronically to the Director General of Income-tax (Systems) or a person authorised by him; and



Rules

A. Allotment of Permanent Account Number

(b) upload the foreign residency declaration as referred to in sub-rule (3)(b)(iii) within fifteen days from the end of such quarter of the financial year to which such statement relates.

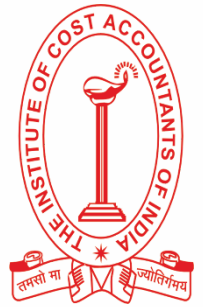
(5) For the purposes of this rule, —

(a) —eligible foreign investor|| means a non-resident who operates in accordance with the Securities and Exchange Board of India, Circular IMD/HO/FPIC/CIR/P/2017/003, dated 4th January, 2017;

(b) —International Financial Services Centre|| shall have the meaning assigned to it in section 2(q) of the Special Economic Zones Act, 2005 (28 of 2005);

(c) —specified fund|| shall have the meaning assigned to in Schedule VI [Note (1)(g)] to the Act; and

(d) —stock broker|| means a person having trading rights in a recognised stock exchange located in any International Financial Services Centre and the member of such exchange.



Rules

159. Transactions in relation to which Permanent Account Number is to be quoted or applied for purposes of section 262(1)(f) and 262(10)(c) and (e).

(1) Every person shall quote his Permanent Account Number in all documents, pertaining to the transactions specified in column 2 for value of transaction specified in column 3 of the following Table : —

Sl. No.	Nature of Transaction	Quantum for quoting PAN
1	Making an application to any banking company or a co-operative bank or any other Company for the issuance of credit card	All such transactions
2	Opening of an account with a depository, participant, custodian of securities or any other person registered U/s 12(1A) of the Securities and Exchange Board of India Act, 1992 (15 of 1992).	All such transactions
3	Payment to the Reserve Bank of India, constituted under section 3 of the Reserve Bank of India Act, 1934 (2 of 1934) for acquiring bonds issued by it.	Amount > Rs.50,000/-

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Rules

A. Transactions on which PAN is required

Sl. No.	Nature of Transaction	Quantum for quoting PAN
4	Payment to a Mutual Fund for purchase of its units.	Amount > Rs.50,000/-
5	A contract for sale or purchase of securities (other than shares)	Amount > Rs.1 lac per transaction
6	Deposit or Withdrawals with — (i) a banking company or a cooperative bank to which the Banking Regulation Act, 1949 (10 of 1949), applies (including any bank or banking institution referred to in section 51 of that Act); or (ii) post office.	Cash deposits or withdrawal aggregating to ten lakh rupees or more in a financial year, in one or more account of a Person
7	Sale or purchase of — motor vehicle or motor cycle excluding Tractor	Amount > Rs.5 lac
8	Sale or purchase, by any person, of shares of a company not listed in recognised stock exchange.	Amount > Rs.1 lac per transaction



Rules

A. Transactions on which PAN is required

Sl. No.	Nature of Transaction	Quantum for quoting PAN
9	Payment to a company or an institution for acquiring debentures or bonds issued by it.	Amount > Rs.50,000/-
10	Purchase or sale or gift or joint development agreement by any person of any immovable property	Transaction Amount or value determined by the Stamp duty authority exceeding Rs.20 lac
11	Opening an account other than a time deposit in any bank or Co-operative bank	All such transactions
12	A time deposit with — (i) a banking company or a cooperative bank (ii) a Post Office (iii) a Nidhi referred to in section 406 of the Companies Act, (iv) a NBFC holds certificate of Registration U/s 45IA of RBI Act	Amount exceeding Rs.50,000/- or Rs.5,00,000/- in aggregate during the F.Y.



Rules

A. Transactions on which PAN is required

Sl. No.	Nature of Transaction	Quantum for quoting PAN
13	Commencement of account based relationship with the Insurer	All such transactions where insurance premium exceeds Rs.50,000/- P.A.
14	Payment to i) a hotel or restaurant or ii) A Convention center or iii) Banquet hall or iv) Any person engaged in event management against a bill or bills at any time	Payment in cash or any amount exceeding Rs.1 lac
15	Sale or Purchase of goods or service of any nature by any person other than specified in Sl. No, 1 and Sl. No. 14 above	Amount exceeding Rs.2 lac per transaction



Special instructions under the Table

- In respect of transactions in Column 2 of Table as mentioned in Sub rule(1)
 - any person who is a minor, not having any income chargeable to tax, and who enters into any of the said transactions, shall quote the Permanent Account Number of his father or mother or guardian, as the case may be, in the document pertaining to the said transaction;
 - any person, not being a company or a firm, and who does not have a Permanent Account Number, entering into any of the transactions mentioned at Sl. Nos. 11 to 16, shall make a declaration in Form No. 97 giving therein the particulars of such transaction;
 - out of the transactions mentioned in clause (ii), a foreign company entering into transactions at Sl. No. 12 or 13 in an IFSC banking unit, who does not have —
 - a Permanent Account Number; and
 - any income chargeable to tax in India, shall make a declaration in Form No. 97.

Special instructions under the Table

- For the purposes of section 262(1)(f), any person, not being a company or a firm, and who does not have Permanent Account Number, entering into—
 - any of the transactions mentioned at Sl. No. 1 to 10;
 - transaction mentioned at Sl. No. 11, where amount of immovable property exceeds forty-five lakh rupees or more, or its value as per stamp valuation authority referred to in section 78 of the Registration Act, 1908 (16 of 1908) exceeds forty-five lakh rupees,
- shall apply for Permanent Account Number.
- The provisions of sub-rule (3) shall not apply in a case, —
 - where the person carrying out transactions as per Sl. Nos. 1 to 10 of column (2) of the Table in sub-
- rule (1), is a non-resident (not being a company) or a foreign company;
 - the transaction is entered into with an IFSC banking unit; and
 - such non-resident (not being a company) or the foreign company does not have any income chargeable to tax in India.

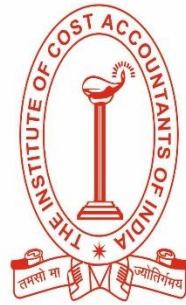
Special instructions under the Table

- The person referred to in column (4) of Table in sub-rule (I), who has received or issued any document, shall ensure that—
 - Permanent Account Number after verification, has been duly and correctly mentioned therein or as the case may be, a declaration in Form No. 97 has been duly furnished with complete particulars;
 - the valid Permanent Account Number or the fact of furnishing of Form No. 97, is duly mentioned in the records maintained for the transactions referred to in column (2) of Table in sub-rule (1); and
 - the Permanent Account Number or the details of Form No. 97 are linked and mentioned in any information furnished to the income-tax authority or any other authority or agency under any provision of the Act or any rule made thereunder.
- The provisions of sub-rule (1) shall not apply to the following class or classes of persons:—
 - the Central Government, State Governments and the consular offices; and
- the non-residents referred to in section 2(72) in respect of the transactions referred to against Sl. No. 1 or 3 or 15 or 16 of the Table

Special instructions under the Table

- The Principal Director General of Income-tax (Systems) or Director General of Income -tax (Systems) shall lay down the formats and standards along with procedure as regards the manner of authentication of Permanent Account Number.

Thank You



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